

HOW COMMUNITIES CAN STOP DESTRUCTIVE DEVELOPMENT PROJECTS IN CHINA

Complete Community Opposition How-To

This guide uses the Chinese terms and bodies you'll actually run into — the EIA and its public participation, the letters-and-visits (xinfang) system, the environmental hotline, central environmental inspection, public-interest litigation — and explains each in plain words the first time. Safety is paramount here: frame everything around health, property, and the state's own environmental rules, never around politics, and always check the current position.

INTRODUCTION & FRAMEWORK

In 2007, in the coastal city of Xiamen, the government approved a huge **paraxylene (PX) chemical plant** — a facility handling a hazardous, carcinogenic chemical — to be built in Haicang district, barely four kilometres from a school and within five kilometres of more than a hundred thousand people. The response became a landmark. A chemistry professor and **105 members of the local political consultative conference** publicly warned of the danger; residents spread the alarm by **text message and online**; academics wrote letters; and on 1 June, some ten thousand ordinary people — office workers, the elderly, families — walked peacefully through the city, wearing yellow ribbons, chanting "PX out!" and, pointedly, "oppose any violence." Within weeks the government **postponed, then cancelled** the Xiamen plant, and in 2008 moved it inland to Zhangzhou. The Ministry then made every EIA report come with a public summary. A disciplined, peaceful, health-focused mobilisation had forced the state to reverse a billion-yuan project.

The Xiamen residents forced the state to move a chemical plant by keeping their cause single-issue and non-political and staying peaceful and disciplined — and the lawful tools they leaned on are available, carefully, to communities across China, which offers a real but limited toolkit. An **environmental impact assessment (EIA)** by law requires some **public participation**. A **letters-and-visits (xinfang)** system and an **environmental hotline** report violations upward. A powerful **central environmental inspection** can override protective local officials. And **environmental public-interest litigation**, which registered organisations and prosecutors have used, has halted a dam and punished polluters. But these tools have grave limits, and this guide states them plainly. The Xiamen plant was not killed, only **moved** to a less powerful community; other destructive projects proceeded with no consultation at all; and across the PX and incinerator protests that followed — Dalian, Ningbo, Kunming, Maoming — people were injured and arrested. The courts generally cannot be used against the state's own decisions; independent organising is tightly constrained; protest is risky and organisers are targeted; and **your safety, and your neighbours', comes before any project**. Frame everything around health, property, and the state's rules — never politics.

The Whole Strategy in One Idea

A big project looks unstoppable, but it depends on a sequence: it must fit an approved **plan**; it must obtain an **EIA approval** (which by law involves public participation); it must secure land, permits, and financing; then it is built. At each stage there are documents that must exist, procedures that must be followed, and standards that must be met — and every requirement is a potential point of failure for the project, and a lever for you. **Find the one closest to your hand and pull** — lawfully, and framed around health and the rules.

Be Honest About Which Fight You're In

Before you act, work out your real situation, carefully:

- **If it's an urban project threatening health and property — a chemical plant, an incinerator near homes — disciplined, peaceful, health-framed pressure has the best record**, as at Xiamen.
- **If the local government is protecting a violator, escalating upward — to the environmental hotline and central inspection — can work**, because Beijing sometimes overrides local officials.
- **If it's a state-priority project, an outright stop is very hard**, and safety is paramount — aim honestly at exposing violations, forcing the rules to be followed, delay, and relocation, and never put people at risk.

Read the whole guide once before you move. Two habits run through it, and both keep you safer: **use the state's own rules and channels** — the EIA participation, the hotline, the inspection system, the disclosure rules — and **stay single-issue, peaceful, and non-political** — about health, property, and the rules, never about the system. That is how Xiamen was won, and how its people stayed safe.

HOW THE SYSTEM WORKS

To find the point of failure you have to see the sequence — who decides, how a project moves, and who can be made to enforce the rules.

Who Actually Decides

A project must fit an **approved plan** and obtain an **EIA approval** from the ecology-and-environment authority (the local bureau, under the **Ministry of Ecology and Environment, MEE**). It needs land and permits from the relevant departments, and financing. Above the local level sits a crucial dynamic: **higher authorities — provincial and central — can override local ones**, and the central **environmental inspection** teams have shut down projects local governments protected. Understand that vertical line: your leverage often lies in appealing *upward*.

How a Project Moves — and Where You Jump In

The plan and the EIA. The project must conform to plans; then an EIA is prepared and approved, and the law requires **public participation** — a public notice, a summary, a chance to comment. *Your opening — lawful and on the record:* obtain the EIA, comment on its flaws, and insist the participation is genuine (the public EIA summary itself exists because of Xiamen).

The approval and permits. The bureau approves the EIA; departments issue permits. *Your opening:* a project that skipped participation, breached a plan, or lacks a required permit is violating the state's own rules — which you can report upward.

Construction and operation. *Your opening:* violations — reported to the environmental hotline and, if the locals shield the violator, to central inspection.

Follow the Rules and the Permissions

Dig up three things, carefully. **What plan and approvals it needs and whether it has them** — a missing or defective EIA, a breach of the approved plan, a missing permit is the soft spot. **Who's behind it** — so you understand the interests and where the pressure points are. **What rules it is breaking** — the specific standard, distance, or procedure it violates, because a rules-and-health case is the safe, effective one.

Who Can Be Made to Enforce the Rules

Each is a channel. The **local ecology-and-environment bureau** runs the EIA and takes complaints. The **environmental hotline (12369)** and online reporting take violation reports. **Higher-level government** and the **central environmental inspection** teams can override protective locals. **Registered environmental organisations and prosecutors** can bring **public-interest litigation** — the one court route that has genuinely worked, halting a dam and penalising polluters. **People's Congress and consultative-conference deputies** can raise a case inside the system, as they did at Xiamen. These are your arenas — all of them within the state's own framework.

QUICK REFERENCE: SUCCESS RATES

Size up the odds honestly. These are rough patterns, not promises. What most moves them: whether it's an urban health-and-property threat, whether the project breaks the state's own rules, whether you can escalate above a protective local government, and — always — whether people can act safely.

What you do	Roughly works	How long	Risk/Cost	What "works" means
Just gather documents	5–10%	weeks	low	The base for everything else
Comment in the EIA public participation	10–30%	during review	low	On record; changes or a redo
Report violations to the hotline / bureau	15–35%	weeks–months	low	Enforcement; works paused
Escalate to central environmental inspection	20–45%	months	low–mod	Local violator shut down
Public-interest litigation (via a registered NGO/prosecutor)	20–45%	1–3 yr	low–mod	Project halted; polluter penalised
Deputies / consultative-conference route	15–35%	varies	low	Case raised inside the system
Disciplined, peaceful, health-framed mobilisation (urban)	25–50%	weeks–months	higher	Project cancelled or relocated (Xiamen)
Everything together (urban, health/property, rules broken)	35–55%	months–1 yr	mod	Cancelled, relocated, delayed, redone
Everything together (state-priority project)	10–30%	1–3 yr	mod–high	Violations exposed; delay; rules enforced

The levers with the best record are **health-framed urban mobilisation**, **escalation to central inspection**, and **public-interest litigation**, all kept strictly within the rules. Xiamen shows the ceiling (a big plant cancelled). The honest floor is a state-priority project where the realistic win is enforcing the rules, exposing violations, and delay — and where safety must come first.

On risk: commenting, reporting to the hotline, and gathering documents are low-risk and lawful. Organising and any form of protest carry real risk — organisers have been detained. Keep everything single-issue, peaceful, non-political, and

health-and-rules-based; protect the vulnerable; and never let a project matter more than a person.

STEP 1: TARGET IDENTIFICATION

Being against "the project" is weak, and being vague can be unsafe. Being specific — this rule broken, this health risk, this missing approval — is strong and safer. Answer five questions in writing, carefully.

1. What is it, and who's behind it? Name the project and the company; understand the interests, so you can judge the risks.

2. Where is it, and what does it threaten? Map it over homes, schools, your water source, your air, farmland. **A concrete threat to health and property, close to people, is your strongest and safest ground** — that was Xiamen's power.

3. What does it need, and what's missing or defective? Does it fit the approved plan? Does it have a valid EIA with genuine public participation? Does it have every permit? A missing or defective approval, or a breach of the plan, is the soft spot.

4. What rules or standards does it break? A safety-distance rule, an emission standard, a required procedure — name it exactly. A rules-and-health case is the one the system can act on and the one that keeps you safe.

5. Who else is affected, and who inside the system might help? Neighbours, a homeowners' community, sympathetic deputies or consultative-conference members, a registered environmental organisation. Xiamen's residents had scientists and consultative-conference members inside the system.

What this looks like in real life. A community learns a chemical plant or incinerator is coming near their homes, with a rushed EIA and no real consultation. The five questions yield: a named project; a concrete health-and-property threat close to homes and a school (the strong, safe ground); an EIA that skipped genuine participation and may breach the plan; a specific safety-distance rule broken; and neighbours plus a sympathetic deputy. That's the Xiamen pattern — build a lawful, health-framed, rules-based case, and press it through the state's own channels.

STEP 2: DOCUMENTATION

The difference between a community that can act and one that can't is proof — and in China a rules-and-health case, well documented, is both the most effective and the safest. Build it in three layers, carefully.

Layer one: the paper trail. Get the documents the project rests on — the EIA report and its public summary, the approval, the plan it must conform to, the permits. China's open-government-information rules and the EIA's own disclosure requirements give you a lawful basis to request them. Then read them for flaws — a skipped or token public participation, a breach of the approved plan, a safety-distance or emission standard violated, a missing permit.

Layer two: the ground truth. Dated, located photographs and video of the site and the threatened homes, school, water, and air — baseline evidence most of all — kept securely.

Layer three: the map of rules and harms. Lay the project over the homes, school, and water it threatens, and against the specific rules it breaks, so the health case and the rule-breach are undeniable. A tight,

lawful, rules-and-health dossier is what the hotline, the inspection teams, and a public-interest litigator can act on.

WHAT TO GATHER, AND WHERE TO FIND IT

- **The EIA report and public summary, the approval, the plan, the permits** — from the ecology-and-environment bureau and via open-government-information requests (8A).
- **The specific rules and standards** — the safety distances, emission limits, and procedures the project must meet.
- **Ownership and interests** — company records, to understand who's behind it.
- **The rules-and-harms map** — homes, school, water, and air, laid over the project and against the rules it breaks.
- **Dated site evidence** — photographs marked with date and place, kept securely.

STEP 3: BUILDING LOCAL OPPOSITION

Documents give you a case; people give you weight — but in China, how you organise determines whether you are safe. Build carefully, in four moves.

Start with a tight, trusted core. The neighbours most affected, a few steady people, and any respected local figure — kept small and trusted.

Keep it single-issue, non-political, and lawful. Xiamen's discipline was its shield: about health, property, and the rules, never about the system or its leaders, and firmly peaceful ("oppose any violence"). This framing is both more effective and far safer.

Find allies inside the system. Sympathetic **People's Congress or consultative-conference deputies**, a **registered environmental organisation** that can bring public-interest litigation, an academic who can speak to the health risk. These inside-the-system allies carried Xiamen.

Protect people above all. Organising and protest carry real risk; organisers have been detained. Weigh every step for safety, protect the vulnerable, avoid anything that can be cast as political, and never let the project matter more than a person. If in doubt, use the lawful, low-risk channels — the documents, the hotline, the litigation — rather than the street.

STEP 4: LEGAL & OFFICIAL CHANNELS

Law and official channels are your safest levers — but use the right one, because the courts largely cannot be turned against the state's own decisions.

Comment in the EIA — Lawfully, On the Record

The EIA's **public participation** is a genuine, lawful entry point. Obtain the EIA and its public summary, and submit comments on its flaws — a skipped participation, an understated health risk, a breach of the plan. It puts your case on the record and can force changes or a redo.

Report Upward — the Hotline and Central Inspection

Where a project breaks the rules, **report it** — to the local bureau, the **12369 environmental hotline**, and online. And where a **local government is protecting a violator**, escalate to **central environmental**

inspection: these teams, sent from Beijing, have shut down projects that local officials shielded. The vertical structure is your friend — appeal *upward*.

Public-Interest Litigation — the One Court Route That Works

The courts generally will not hear a citizen's challenge to a state approval. But **environmental public-interest litigation** — brought by a **qualified, registered environmental organisation** or by the **procuratorate (prosecutors)** — is a real, if narrow, route, and has been used to **halt a hydropower dam and penalise polluters**. If your case involves a clear breach of environmental law, reaching a registered organisation that can litigate is one of your strongest lawful moves.

The Honest Limits — and Safety

Straight talk: these channels are real but limited; the courts are largely closed against the state; a state-priority project is very hard to stop outright; and organising and protest carry real personal risk. So use the safe, lawful tools — the EIA comment, the hotline, central inspection, public-interest litigation, the deputies — keep everything health-and-rules-based and non-political, protect your people, and count enforced rules, exposed violations, a redo, delay, and relocation as real wins.

TURNING YOUR EVIDENCE INTO ARGUMENTS

A stack of documents wins nothing until you aim it — safely.

A rule becomes a violation to report. Not "we don't want this" but *"this plant sits inside the mandatory safety distance from homes and a school — a breach of the standard, which we are reporting."*

A flaw becomes a redo. *"The EIA's public participation never genuinely happened — the approval doesn't meet the state's own requirements."*

A breach becomes litigation. *"This discharges in violation of environmental law — grounds for public-interest litigation."*

A protected violator becomes an inspection case. *"The local bureau is not enforcing the rules against this project — a matter for central inspection."*

Match it to the channel: the flaw to the EIA comment; the rule-breach to the hotline; the shielded violator to central inspection; the legal breach to a registered litigator; the case inside the system to a deputy. Keep every framing about health and the rules, never politics.

STEP 5: MEDIA & PUBLIC ATTENTION — CAREFULLY

Public attention has moved projects in China — Xiamen spread through text messages and online — but it is the highest-risk lever, so handle it with the greatest care.

Frame it around health and the rules, never politics. The safe, effective story is "a hazardous plant too close to our homes and school, approved against the state's own rules" — never a story about the system. This framing is both more persuasive to responsive officials and far safer.

Prefer the lawful, lower-risk channels. Reporting to the hotline, submitting EIA comments, and reaching a registered organisation or a deputy carry far less risk than public mobilisation. Weigh any public step carefully, and let the group decide together.

Two hard rules. Accuracy above all — one false claim discredits everything and can be used against you. And protect people above the project — avoid anything that can be cast as political, protect the vulnerable, and never assume attention is safe.

EMAILS & LETTERS

Adapt these to your language and situation; keep them factual, calm, non-political, and health-and-rules-based; keep copies; and protect anyone at risk.

8A — Open-government-information request (to the bureau).

Subject: Request for the EIA and approval documents — [project].

"We, residents of [place], request under the open-government-information rules the EIA report and public summary, the approval, the applicable plan, and the permits for [project] at [location]. [Contact.]"

8B — Comment in the EIA public participation.

Subject: Public comment on the EIA for [project].

"We, residents of [place], comment that [project] [sits inside the mandatory safety distance from homes and a school / understates the health risk / had no genuine public participation / breaches the approved plan]. We ask that approval be withheld pending compliance. [Attach evidence.]"

8C — Report to the environmental hotline / bureau.

Subject: Report of a rule violation — [project].

"We report that [project] at [location] violates [the specific standard / procedure]: [specifics]. We ask the bureau to investigate and enforce the rules. [Attach evidence.]"

8D — Requesting central environmental inspection.

Subject: Request for inspection — [project] and local non-enforcement.

"We report that [project] breaks [the rule] and that the local authorities have not enforced against it: [specifics]. We ask that this be examined by central environmental inspection. [Attach evidence.]"

8E — To a registered environmental organisation (public-interest litigation).

Subject: Possible public-interest litigation — [project].

"Our community faces [project], which appears to breach environmental law: [specifics]. We have gathered [the EIA, the approval, photographs] and ask whether public-interest litigation is possible, and how we can help. [Contact and evidence summary.]"

8F — To a People's Congress / consultative-conference deputy.

Subject: Request to raise a health-and-safety concern — [project].

"We, residents of [place], ask you to raise, within the proper channels, our concern that [project] threatens our health and safety and breaches [the rule]: [specifics]. [Attach evidence.]"

8G — To a company (lawful, factual).

Subject: Legal and health concerns with [project].

"We understand your company is developing [project] at [location], which [breaches the safety distance / lacks genuine participation]. We ask you to address these concerns and comply with the applicable rules. [Contact and evidence summary.]"

8H — Rallying neighbours (carefully, health-framed).

Subject: Protecting our health — what we can do lawfully.

"[Project] threatens [our health / homes / water], and appears to break [the rule]. In Xiamen, residents protected their city by keeping to health and the rules, staying peaceful, and using the state's own channels. Let's do the same — carefully and lawfully: request the documents, comment on the EIA, report the violations, and look after one another. [Contact.]"

IF YOU HAVE LITTLE TIME OR FEW RESOURCES: THE RAPID-FIRE VERSION

If you must move fast and lean, do these six things, in order, and safely:

1. **Nail down the project and, above all, the specific rule it breaks and the health threat.** That's your strongest, safest ground.
2. **Request the EIA and approval (8A), and comment on their flaws (8B).**
3. **Report the violation to the hotline and bureau (8C); if the locals shield it, request central inspection (8D).**
4. **Photograph everything, with dates and places, and keep it secure.**
5. **Reach a registered environmental organisation about public-interest litigation (8E), and a sympathetic deputy (8F).**
6. **Keep any wider action single-issue, peaceful, health-framed, and non-political — and protect people first (8H).**

Even lean, those six use the state's own rules and channels, keep the case safe, and put the lawful levers to work.

WHEN THE SYSTEM IS TILTED

China's channels are limited, and the field is tilted, so plan for it — and stay safe.

When the local government backs the project. Escalate *upward* — the hotline, central inspection, higher authorities — because Beijing sometimes overrides protective locals. That vertical route is your best lever against a captured local government.

When it's a state-priority project. An outright stop is very hard. Aim honestly at exposing violations, forcing compliance, delay, and relocation — and keep people safe above all.

When participation is a formality. A token EIA hearing is common. Document the flaw and report it upward; it is a breach of the state's own requirement.

When organising is risky. It is. Prefer the lawful, low-risk channels; keep everything non-political; protect organisers and the vulnerable; and never let the project matter more than a person.

WHEN IT'S ACTUAL CORRUPTION — AND WHO'S CAPTURED

Local officials protecting a polluting project — for revenue, jobs, or ties to the company — is a common pattern, and the state's own anti-corruption and inspection machinery can sometimes be turned against it.

How to spot it. A local bureau that won't enforce clear rule-breaches; approvals against the standards; a project shielded despite documented violations; benefits to the connected while residents carry the harm.

Who can act. **Central environmental inspection** teams override protective locals. The **discipline-inspection and supervision** system pursues official misconduct. **Prosecutors** can bring public-interest litigation. **Higher-level government** can intervene. These are all within the state's framework — which is what makes using them relatively safe.

How to act safely. Document precisely and factually — the rule broken, the non-enforcement, the harm — and keep strictly to facts and the rules, never politics or personal accusation. Route the evidence upward through the hotline, central inspection, and the disciplinary channels, protect anyone exposed, and keep the framing about health and compliance. This is the safe way to press a captured local decision.

INTEGRATION & TIMELINE

Don't run these steps one after another — run them together, safely. The documents build your case; naming the rule-breach and health threat aims it; a trusted core carries it; the EIA comment, the hotline, and central inspection press it upward; litigation and a deputy add force. Together they multiply. One at a time, they stall.

Early on (weeks 1–6): nail down the project, the rule it breaks, and the health threat; request the EIA and approval; comment on the flaws; photograph the baseline; build a small, trusted core; keep everything lawful and non-political.

In the thick of it (weeks–months): report the violations to the hotline and bureau; escalate to central inspection if the locals shield it; reach a registered organisation about public-interest litigation and a sympathetic deputy; weigh any public step for safety.

The long haul (months–years): carry the litigation and the inspection case; keep the pressure lawful and upward; hold the line for enforced rules, exposed violations, a redo, delay, or relocation — and keep your people safe throughout.

FINAL ASSESSMENT

Stopping a destructive project in China can be done — the people of Xiamen forced a billion-yuan chemical plant to be cancelled and moved, by keeping their cause about health and the rules, staying peaceful and disciplined, and using the state's own institutions. Hold both truths. The tools are real but narrow: an EIA with public participation; a letters-and-visits system and an environmental hotline; a central inspection system that can override protective locals; and public-interest litigation that has halted a dam and punished

polluters. And the constraints are severe: courts largely closed against the state, tightly constrained organising, state-priority projects that are very hard to stop, and real personal risk.

Here's the discipline that wins — and keeps you safe. Name the specific rule the project breaks and the concrete threat to health and property, and build a tight, lawful dossier. Comment in the EIA, report the violations to the hotline, and escalate to central inspection when local officials shield the project. Reach a registered organisation about public-interest litigation and a sympathetic deputy inside the system. Keep everything single-issue, peaceful, non-political, and health-and-rules-based — and protect your people above all. Count enforced rules, exposed violations, a redo, delay, and relocation as real wins. That's what Xiamen did — health and the rules, discipline and peace, the state's own channels. So can you — carefully, and safely.